

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #06	CCRB Case #: 201803456	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 04/30/2018 5:03 AM	Location of Incident: En route to and at the 114th Precinct stationhouse	18 Mo. SOL 10/30/2019	Precinct: 114		
Date/Time CV Reported Wed, 05/02/2018 7:48 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 05/02/2018 7:48 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Keith Lang	23218	957757	114 PCT
2. POM Erald Zgjana	09472	952369	114 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Cristina Mcdonald	04468	924083	114 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Erald Zgjana	Discourtesy: En route to the 114th Precinct stationhouse, Police Officer Erald Zgjana spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Keith Lang	Off. Language: At the 114th Precinct stationhouse, Police Officer Keith Lang made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	B . Unsubstantiated
C . POM Keith Lang	Discourtesy: At the 114th Precinct stationhouse, Police Officer Keith Lang spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Keith Lang	Abuse: At the 114th Precinct stationhouse, Police Officer Keith Lang threatened § 87(2)(b) with the use of force.	D . Unsubstantiated

Case Summary

On May 2, 2018, § 87(2)(b) filed this complaint via the CCRB's call processing system.

On April 30, 2018, at approximately 5:03 a.m., § 87(2)(b) was involved in a physical altercation with a colleague in front of 39-35 22nd Street in Queens. PO Keith Lang, PO Erald Zgjana, and PO Cristina McDonald, all of the 114th Precinct, responded to the location. § 87(2)(b) was arrested for § 87(2)(b) and transported to the 114th Precinct stationhouse. En route to the 114th Precinct stationhouse, § 87(2)(b) requested medical attention and PO Zgjana allegedly stated, "Stop this bullshit. I don't give a shit" (**Allegation A: Discourtesy**, § 87(2)(g)).

At the 114th Precinct stationhouse, § 87(2)(b) was lodged in a holding cell, where he continued to request medical attention. PO Lang allegedly told § 87(2)(b) "Somebody came to break your virginity. That's why you're screaming and yelling" (**Allegation B: Offensive Language**, § 87(2)(g)). Approximately 30 minutes later, EMTs transported § 87(2)(b) to § 87(2)(b), where he was treated and discharged into police custody. § 87(2)(b) was transported back to the 114th Precinct stationhouse, where PO Lang allegedly told § 87(2)(b) to "go to hell," that he was a "piece of shit" and that he "has seen a lot of shitty guys like you" (**Allegation C: Discourtesy**, § 87(2)(g)) and threatened § 87(2)(b) with the use of force (**Allegation D: Abuse of Authority**, § 87(2)(g)).

There is no video evidence in this case.

Findings and Recommendations

Allegation A – Discourtesy: En route to the 114th Precinct stationhouse, Police Officer Erald Zgjana spoke discourteously to § 87(2)(b)

§ 87(2)(b) (Board Review 01, Board Review 02) testified that during the drive to the 114th Precinct stationhouse, he began to have abdominal pain from kidney stones and requested to go to the hospital. PO Zgjana allegedly told § 87(2)(b) "Stop this bullshit. I don't give a shit."

§ 87(2)(b)'s medical records from § 87(2)(b) (Board Review 03) document § 87(2)(a) PHL § 18(6).

§ 87(2)(b)'s medical records do not contain any statements regarding his interactions with officers.

PO Zgjana (Board Review 04) testified that during the drive to the stationhouse, § 87(2)(b) stated that he needed an ambulance because "his eyes were popping out." In response, PO Zgjana told § 87(2)(b) that he would get him an ambulance. PO Zgjana did not recall any other statements made by § 87(2)(b) during the drive. PO Zgjana denied that he ever told § 87(2)(b) "Stop this bullshit. I don't give a shit."

PO McDonald (Board Review 05) testified that § 87(2)(b) was very talkative on the way to the stationhouse, though she was unable to specifically recall what he said. Upon their arrival at the stationhouse, § 87(2)(b) stated that he needed an ambulance because "his eyes were popping out of his head." PO McDonald denied that PO Zgjana ever told § 87(2)(b) "Stop this bullshit. I don't give a shit."

PO Lang (Board Review 06) was not present during this aspect of the incident.

§ 87(2)(g)

Allegation B – Offensive Language: At the 114th Precinct stationhouse, Police Officer Keith Lang made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation C – Discourtesy: At the 114th Precinct stationhouse, Police Officer Keith Lang spoke discourteously to § 87(2)(b)

Allegation D – Abuse of Authority: At the 114th Precinct stationhouse, Police Officer Keith Lang threatened § 87(2)(b) with the use of force.

§ 87(2)(b) testified that he was placed a holding cell at the 114th Precinct stationhouse, where he yelled for an ambulance and laid on the floor and cried in pain. PO Lang entered the holding cell and allegedly told § 87(2)(b) “Somebody came to break your virginity. That’s why you’re screaming and yelling.” § 87(2)(b) ultimately received medical attention at § 87(2)(b) and was returned to the 114th Precinct stationhouse for arrest processing. While being fingerprinted outside of the holding cell, PO Lang allegedly told § 87(2)(b) to “go to hell,” that he was a “piece of shit,” and that he had “seen a lot of shitty guys like you.” § 87(2)(b) told PO Lang that he had a family and made more money than him. PO Lang allegedly told § 87(2)(b) that he would sent him back to the hospital if he opened his mouth again.

§ 87(2)(b)’s medical records do not contain any statements regarding his interactions with officers.

§ 87(2)(b) (Board Review 07), who was identified as being present in the holding cell by the NYPD’s Booking, Arraignment, and Disposition System, denied having any knowledge about the incident and refused to speak further with CCRB.

PO Lang testified § 87(2)(b) yelled that he had kidney stones and was in pain upon being escorted to a holding cell. PO Lang told § 87(2)(b) he would get him an ambulance. PO Lang denied that he told § 87(2)(b) “Somebody came to break your virginity. That’s why you’re screaming and yelling.” § 87(2)(b) was transported to § 87(2)(b). Upon § 87(2)(b)’s discharge and return to the stationhouse, PO Lang digitally fingerprinted § 87(2)(b). PO Lang described that § 87(2)(b)’s hands were sweating, which interfered with his ability to obtain a proper fingerprint scan. PO Lang repeatedly wiped § 87(2)(b)’s hands dry and § 87(2)(b) asked PO Lang why he was doing so. PO Lang explained to § 87(2)(b) that he could not get a clear fingerprint scan. PO Lang denied that he told § 87(2)(b) to “go to hell,” that he was a “piece of shit,” or that he had “seen a lot of shitty guys” like § 87(2)(b).

Neither PO Zgjana nor PO McDonald were present during this aspect of the incident.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to one prior CCRB complaint and has been named a victim in six allegations (Board Review 08):

- § 87(2)(b)

- PO Lang has been a member-of-the-service for three years and has been a subject in three CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Zgjana has been a member-of-the-service for six years and has been a subject in one prior CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 7, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 09).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: #6

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
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Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
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Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date
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